

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SUMMONS

LOURDES GONZALEZ,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, DETECTIVE MANIK
MOHAMMED, Tax No. 948240, DETECTIVE JOSEPH
RYAN, Tax No. 955428, DETECTIVE ESSENCE
JACKSON, Tax No. 948240, LIEUTENANT
COMMANDER JOHN HOPKINS, Tax No. 904167, and
POLICE OFFICERS JOHN DOES #s 1-10 (names and
numbers of whom are unknown at present),

Plaintiff designates KINGS
County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 6, 2024

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE MANIK MOHAMMED, Tax No. 948240, Narcotics Borough Brooklyn
South
DETECTIVE JOSEPH RYAN, Tax No. 955428, Narcotics Borough Brooklyn South
DETECTIVE ESSENCE JACKSON, Tax No. 948240, Narcotics Borough Brooklyn
South
LIEUTENANT COMMANDER JOHN HOPKINS, Tax No. 904167

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

LOURDES GONZALEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE MANIK
MOHAMMED, Tax No. 948240, DETECTIVE JOSEPH
RYAN, Tax No. 955428, DETECTIVE ESSENCE
JACKSON, Tax No. 948240, LIEUTENANT
COMMANDER JOHN HOPKINS, Tax No. 904167, and
POLICE OFFICERS JOHN DOES #s 1-10 (names and
numbers of whom are unknown at present),

Defendants.

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Plaintiff LOURDES GONZALEZ, by her attorneys, Jacobs & Hazan, PLLC, as and for
her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on or about August 6, 2021 at approximately 2:00 PM plaintiff was lawfully present in the vicinity of 60th Street, between 3rd and 4th Avenues, Brooklyn, New York, when the individually named defendant NYPD police officers unlawfully stopped, questioned, frisked, searched, assaulted and battered, and falsely arrested and imprisoned plaintiff, without probable cause or legal justification. The officers physically injured plaintiff during the arrest when they squeezed plaintiff's arms and neck using an unreasonable amount of force, causing severe bruising to plaintiff's body. Additionally, the officers unlawfully seized plaintiff's medication without any legal justification whatsoever and refused to return the medication to plaintiff. The police officers transported plaintiff to the 72nd Precinct against her will whereat plaintiff was unlawfully searched and detained in a small, filthy holding cell for many hours. After plaintiff was unlawfully detained at the 72nd Precinct for many hours, the officers released plaintiff from the precinct. The officers submitted a Desk Appearance ticket to the Kings County District Attorney's Office, but the Kings County District Attorney's Office declined to prosecute plaintiff and plaintiff was not charged with

committing a crime. The officers physically pushed plaintiff out of the station house, using unreasonable force and causing bruises throughout plaintiff's body. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of her Constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, and subjected plaintiff to the use of excessive force in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff LOURDES GONZALEZ is a resident of the state of New York.

3. Defendant DETECTIVE MANIK MOHAMMED, Tax No. 948240, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant DETECTIVE MANIK MOHAMMED, Tax No. 948240, was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South Command.

5. Defendant DETECTIVE MANIK MOHAMMED, Tax No. 948240, is being sued in his individual and official capacity.

6. Defendant DETECTIVE JOSEPH RYAN, Tax No. 955428, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant DETECTIVE JOSEPH RYAN, Tax No. 955428, was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South Command.

8. Defendant DETECTIVE JOSEPH RYAN, Tax No. 9554284787, is being sued in her individual and official capacity.

9. Defendant DETECTIVE ESSENCE JACKSON, Tax No. 948240, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant DETECTIVE ESSENCE JACKSON, Tax No. 948240, was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South Command..

11. Defendant DETECTIVE ESSENCE JACKSON, Tax No. 948240, is being sued in his individual and official capacity.

12. Defendant LIEUTENANT COMMANDER JOHN HOPKINS, Tax No. 904167, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant LIEUTENANT COMMANDER JOHN HOPKINS, Tax No. 904167, was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South Command.

14. Defendant LIEUTENANT COMMANDER JOHN HOPKINS, Tax No. 904167, is being sued in her individual and official capacity

15. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On or about August 6, 2021, at approximately 2:00 pm, plaintiff was lawfully present in the vicinity of 60th Street, between 3rd and 4th Avenues, Brooklyn, New York, waiting for her father to come home, at which time she was approached by defendants who asked her whether she was okay.

22. Plaintiff told the officers that she was okay and was just waiting for her father to come home.

23. The officers asked plaintiff if she had any illegal drugs in her possession and she told the officers that she did not have anything illegal in her possession.

24. Plaintiff opened her purse for them and showed the officers that she only had her prescription medication which was in a pill bottle with a label that showed the medication was prescribed to her

25. Nevertheless, the officers unlawfully seized plaintiff's medication from her, without any legal justification to seize the medication. \

26. The officers grabbed plaintiff in an excessively rough manner causing plaintiff to suffer bruises on her arms and neck, unlawfully handcuffed plaintiff and falsely arrested her, without probable cause.

27. The officers transported plaintiff to the 72nd Precinct against her will, whereat plaintiff was unlawfully searched and detained in a small, filthy holding cell for many hours.

28. The officers refused to tell plaintiff why she was arrested, and plaintiff was terrified because she did not do anything wrong.

29. After many hours plaintiff was released from the precinct without being charged with any crime.

30. The officers refused to return plaintiff's medication to her when she was released from the precinct.

31. Plaintiff requires her medication in order to maintain a healthy psychological state and she also suffers from severe withdrawal symptoms from her medication if she does not take her normal prescription.

32. Additionally, since the medication is a controlled substance she could not get the medication that the officers seized from her re-prescribed by a doctor and she had to wait to refill her prescription until the following month.

33. Consequently, plaintiff suffered from severe withdrawal symptoms in the days following her arrest.

34. Plaintiff suffered seizures and was admitted to Methodist Hospital as a result.

35. Additionally, plaintiff suffered a mental breakdown because she was not taking her medication and she was admitted to the psych ward of a hospital.

36. The officer's unlawful seizure of plaintiff's medication caused her to suffer severe physical and psychological injuries for the remainder of the month, until she was able to refill her prescription

37. The defendants did not issue plaintiff a Desk Appearance Ticket, but they submitted a Desk Appearance Ticket to the Kings County District Attorney's Office.

38. The Kings County District Attorneys Office declined to prosecute plaintiff and she was not charged with committing any crime.

39. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

40. Plaintiff was deprived of her Constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, and subjected plaintiff to the use of excessive force in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

41. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

42. Defendants stopped, questioned, frisked, searched, falsely arrested, and subjected plaintiff to the use of excessive force, without probable cause or legal justification.

43. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, and subjected plaintiff to the use of excessive force in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

44. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficient punish defendants for the misconduct they previously engaged in.

45. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess

enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

46. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

47. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

48. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

49. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

50. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and excessive force used by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

51. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested and falsely imprisoned, without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the

Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

53. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

58. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop and search of plaintiff employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

60. Defendants lacked probable cause to search plaintiff.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment

Rights: Excessive Force

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The use of excessive force by defendants against plaintiff described herein was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

66. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

FIFTH CAUSE OF ACTION

Failure to Intervene

67. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

69. Defendants failed to intervene to prevent the unlawful conduct described herein.

70. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. Plaintiff was unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and denied the right to due process without an objective factual legal basis to seize, arrest, prosecute, and subject plaintiff to the use of force pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

74. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and subjected to the use of excessive force, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

75. The NYPD and Defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

76. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and use excessive force against members of the public when there is no factual basis to suspect the individual has committed a crime.

77. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

78. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

79. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

80. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

81. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to: (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

82. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

83. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

84. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff LOURDES GONZALEZ demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 6, 2024

By:

David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 6, 2024



DAVID M. HAZAN